RECEIVED

JUN 19 2026

Amador County Elections

RESOLUTION 25-26-32

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF SUTTER CREEK CALLING FOR A MUNICIPAL ELECTION TO SUBMIT TO THE VOTERS A LOCAL BALLOT MEASURE TO MAKE THE OFFICE OF CITY TREASURER AN APPOINTED POSITION AND REQUESTING THE BOARD OF SUPERVISORS OF AMADOR COUNTY TO CONSOLIDATE A MUNICIPAL ELECTION ON A LOCAL MEASURE WITH OTHER ELECTIONS TO BE HELD ON THE NOVEMBER 3, 2026 GENERAL ELECTION

WHEREAS, a General Election is scheduled to be held on November 3, 2026; and

WHEREAS, pursuant to California Government Code section 36508, the City Council desires to submit to the voters a ballot measure proposing that the office of city treasurer be changed from an elective office to an appointive office; and

WHEREAS, the City Council is authorized, under California Elections Code section 10400 et seq. to consolidate a municipal election with any other election to be held on the same date and time and within the same territory; and

WHEREAS, the City Council finds that is in the best interest of the City to consolidate the election on the proposed ballot measure with the November 3, 2026 General Election, such that the precincts, polling places, and election officers shall be the same for both elections; the County Board of Supervisors shall canvass the returns of the City ballot measure election; and the election shall be held in all respects as if there were only one election.

NOW, THEREFORE, IT IS HEREBY RESOLVED that the City Council of the City of Sutter Creek ordains as follows:

Section 1. Call for Election.

The City Council hereby calls for a ballot measure election, to be consolidated with the November 3, 2026 General Election, for the purpose of submitting to the voters the question whether the office of city treasurer shall be appointed instead of elected. A majority vote is required for the passage of the ballot measure.

Section 2. Ballot Language.

Pursuant to California Government Code section 36509, the question to be presented to the voters shall be as follows:

Changing the City Treasurer Position from Elected to Appointed. Shall the office of City Treasurer be appointive?	**YES** ☐ **NO** ☐

Section 3. Text of Measure to be Published in the Voter Information Pamphlet.

The text of this measure shall be available at no cost from the City Clerk's Office at 209-267-5647 or on the City's website: cityofsuttercreek.org. A statement about how to obtain the full text of the Ordinance will be included in the Voter Information Pamphlet below the Impartial Analysis.

In addition, only the Whereas Clauses above, Section 15 of this Resolution, the Ballot Question, Impartial Analysis, and Arguments for and against are to be printed in the Voter Information Pamphlet for this measure.

Section 4. Request to Consolidate, Conduct Election and Canvass Returns.

The Board of Supervisors of the County of Amador is hereby requested to authorize the County Clerk/Recorder/Registrar of Voters to render all services necessary and proper for the conduct of the special municipal election called by this Resolution. Pursuant to California Elections Code section 10403, the City Council hereby requests that the Amador County Board of Supervisors consolidate that election with the election to be conducted on November 3, 2026 and order the general municipal election to be conducted by the Registrar of Voters. The Amador County Elections Department is authorized to canvass the returns of the special election, and the election shall be held in all respects as only one election.

The City Clerk's Office is authorized, instructed and directed to work with the County Elections Department as needed to properly and lawfully conduct the election. The ballots to be used in the election shall be in form and content as required by law. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding municipal elections.

Section 5. Time and Place of Election.

The polls for the election shall be open at 7:00 a.m. on the day of the election and shall remain open continuously from that time until 8:00 p.m. that same day, when the polls shall be closed, except as provided in Section 14401 of the Elections Code of the State of California. The notice of the time and place of holding the election is hereby given, and the City Clerk is authorized to give further notice of the election, as required by law.

Section 6. Publication of Measure.

The City Clerk's Office is hereby directed to cause notice of the measure to be published once in accordance with Section 12111 of the Elections Code.

Section 7. Submission of Ballot Arguments.

The City Clerk's Office, with the concurrence of the County Elections Official, has fixed 4:30 p.m. on August 13, 2026 as the deadline for submittal of arguments for or against the measure. The direct arguments shall not exceed three hundred (300) words, and shall not be signed by more than five (5) persons. The City Council does not adopt the provisions of Elections Code Section 9285(a); no rebuttal arguments shall be allowed.

Section 8. Council Preparation of Argument In Support of Measure.

The City Council hereby authorizes the Mayor or Vice Mayor to prepare and file the written primary argument in support of the ballot measure described above, pursuant to Article 4 of Chapter 3 of Division 9 of the California Elections Code. At the discretion of the Mayor or Vice Mayor, the argument may also be signed by other members of the City Council, bona fide associations of citizens, or by individual voters who are eligible to vote in City elections.

Section 9. Impartial Analysis.

Pursuant to California Elections Code Section 9280, the City Council hereby directs the City Clerk's Office to transmit a certified copy of the measure to the City Attorney. The City Attorney shall prepare an impartial analysis of the measure, not to exceed 500 words in length, showing the effect of the measure on the existing law and the operation of the measure, and transmit the impartial analysis to the County Elections Official by no later than 5:30 p.m. on August 14, 2026, or by such other date as the County Elections Official specifies.

Section 10. Implementation.

The City Clerk's Office is directed to file with the Board of Supervisors and the Registrar of Voters certified copies of this resolution. The City will reimburse the County for the actual cost incurred in conducting the election upon receipt of a bill stating the amount due as determined by the County Election Official.

Section 11. Jurisdictional Boundaries

The jurisdictional boundaries of the City of Sutter Creek have not changed since the last general municipal election.

Section 12. CEQA

The approval of this Resolution is exempt from the California Environmental Quality Act (Public Resources Code §§ 21000 et seq., "CEQA," and 14 Cal. Code Reg. §§ 15000 et seq., "CEQA Guidelines"). The ballot measure to be submitted to the voters is exempt from CEQA because the instant measure involves continuing administrative activities and thus is not a project, as CEQA defines, pursuant to Section 15378(b)(2) of the CEQA Guidelines. To the extent that passage of the ballot measure constitutes a project, the City Council finds pursuant to CEQA Guideline Section 15061(b)(3) that the project is exempt from environmental review because it can be seen with certainty that passage of the measure would not have any significant impact on the environment.

Section 14. Passage of this Resolution.

This ballot measure requires the approval of a majority of qualified electors casting votes.

Section 15. Declaration of Intention to Amend Sutter Creek Municipal Code Upon Passage of Proposed Measure; Conversion to Appointed Treasurer Position in December 2026

Should City voters approve the proposed measure, the City Council advises that it will promptly thereafter prepare an ordinance to amend Section 2.10.010 of the Sutter Creek Municipal Code, which currently states:

> "The position of city treasurer shall be voted upon the date of the November 1994 statewide general election and thereafter every four years."

Should City voters approve the proposed measure, Section 2.10.010 will be amended to state:

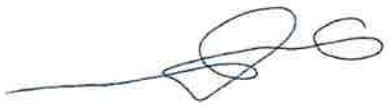
> "Beginning in December 2026, and thereafter, the position of city treasurer shall be appointed by the city council."

If voters approve the measure at the November 2026 election, any person who runs for the position at the same election would not be seated for the position as a result of the voters' approval of the measure. The City Council would appoint a treasurer, at its sole discretion, beginning in December 2026 and thereafter.

IT IS HEREBY CERTIFIED that the foregoing resolution was duly introduced and legally adopted by the City Council of the City of Sutter Creek at a regular meeting held on the **15th** day of **June 2026** by the following vote:

AYES:	Mayor Gunselman, and Council Members Feist, Riordan, and Swift
NOES:	None
ABSTAIN:	None
ABSENT:	Vice Mayor Sierk

THE CITY OF SUTTER CREEK



Claire Gunselman, Mayor

ATTEST



Pam Caronongan, MMC, City Clerk